

Tamil Nadu Occupants of Kudiyruppu (Protection From Eviction) Re-Enacting Act, 1975

Source: <https://indiankanoon.org/doc/140095585/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with
PRISM](#)

[AI](#)

Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[\[Cites](#)

0

, Cited by

2

]

State of Tamilnadu- Act

Tamil Nadu Occupants of Kudiyruppu (Protection From Eviction) Re-Enacting Act, 1975

TAMILNADU

India

Tamil Nadu Occupants of Kudiyruppu (Protection From Eviction) Re-Enacting Act, 1975

Act 23 of 1975

Published on 3 July 1975

Commenced on 3 July 1975

[This is the version of this document from 3 July 1975.]

[Note: The original publication document is not available and this content could not be verified.]

Tamil Nadu Occupants of Kudiyruppu (Protection From Eviction) Re-Enacting Act, 1975

(Tamil Nadu Act

23 of 1975

)

Statement of Objects and Reasons - Tamil Nadu Occupants of Kudiyruppu (Protection from Eviction) Re-enacting Act, 1975 (Tamil Nadu Act

23 of 1975

). - For Statement of Object and Reasons, please see Part IV - Section 1, pages 109-110 of the Tamil Nadu Government Gazette Extraordinary, dated the 9th April 1975.

Statement of Objects and Reasons - Tamil Nadu Occupants of Kudiyruppu (Protection from Eviction) Re-enacting Act, 1975 (Tamil Nadu Act

23 of 1975

). - For Statement of Object and Reasons, please see Part IV - Section 1, pages 109-110 of the Tamil Nadu Government Gazette Extraordinary, dated the 9th April 1975.

Received the assent of the President on the 3rd July 1975 and first published in Part IV - Section 2 of the Tamil Nadu Government Gazette Extraordinary, dated 10th July 1975.

An Act to re-enact the Tamil Nadu Occupants of Kudiyruppu (Protection from Eviction) Act, 1961.

Be it enacted by the Legislature of the State of Tamil Nadu in the Twenty-sixth Year of the Republic of India as follows : -

1.

Short title and commencement.

(1)

This Act may be called the Tamil Nadu Occupants of Kudiyruppu (Protection from Eviction) Re-enacting Act, 1975.

(2)

It shall be deemed to have come into force on the 29th day of November 1973.

2.

Re-enactment of Tamil Nadu Act

38 of 1961

.

- The Tamil Nadu Occupants of Kudiyruppu (Protection from Eviction) Act, 1961 (Tamil Nadu Act

38 of 1961

), as amended, from time to time, and in force on the 28th November 1973 (hereinafter referred to as the said Act), is hereby re-enacted permanently, subject to the modification that, -

(1)

in section 1, -

(a)

for the heading, the heading "Short title and extent" shall be substituted;

(b)

sub-section (3) shall be omitted.

(2)

in section 4, after sub-section (2), the following sub-section shall be added, namely : -

"(3) If any person who was occupying any kudiyruppu on the 28th November 1973 has been evicted from such kudiyruppu after such date, but before the date of the publication of the Tamil Nadu Occupants of Kudiyruppu (Protection from Eviction) Re-enacting Act, 1975 in the Tamil Nadu Government Gazette, he may, within a period of six months after the date of such publication, apply to the authorized officer within whose jurisdiction the kudiyruppu is situated in such form as may be prescribed for restoration to him of the possession of the kudiyruppu from which he was evicted, and to occupy if subject to the same terms and conditions, as far as may be, as were applicable to him on the 28th November 1973."

3.

Savings.

- Anything done or any action taken (including any rule or order made, notification issued, decision or direction given, proceeding taken and liability or penalty incurred and punishment awarded or rights enjoyed) under the provisions of the said Act -

(a)

as in force immediately before its expiry; or

(b)

on or after the 29th November 1973, and before the date of the publication of this Act in the Tamil Nadu Government Gazette, on the footing that the said Act was in force at the relevant time, shall be deemed to have been done or taken under the corresponding provisions of the said Act as hereby re-enacted:

Provided that nothing contained in this section shall render any person liable to any punishment whatsoever by reason of anything done or omitted to be done by him contrary to the provisions of the said Act on or after the 29th day of

November 1973, and before the date of the publication of this Act in the Tamil Nadu Government Gazette.

4.

Act not to affect the operation of Tamil Nadu Act 40 of 1971.

- Nothing in this Act or in the Tamil Nadu Occupants of Kudiyruppu (Protection from Eviction) Act, 1961 (Tamil Nadu Act 38 of 1961

) as re-enacted by this Act, shall be deemed to affect the operation of the Tamil Nadu Occupants of Kudiyruppu (Conferment of Ownership) Act, 1971 (Tamil Nadu Act 40 of 1971).

Related AI tags, queries and research notes

Translation